

24STCV00318 24STCV00318

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-28

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Case Number: 24STCV00318 Hearing Date: July 28, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 28, 2026 TRIAL

DATE: Not Set

CASE: Tiffany Bradshaw v. In Good Taste, Inc.

CASE NO.: 24STCV00318

REQUEST

FOR DEFAULT JUDGMENT

MOVING PARTY: Plaintiff Tiffany Bradshaw

RESPONDING PARTY: None

CASE

HISTORY:

10/15/2024:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a wage and hour case.

Plaintiff requests default
judgment against Defendant In Good Taste LLC.

TENTATIVE RULING:

Plaintiff's request for default
judgment is DENIED without prejudice.

Plaintiff seeks default judgment against
Defendant In Good Taste LLC.

Plaintiff
seeks \$23,800 in general damages, and \$6,500 in attorney fees.

The request
is DENIED without prejudice for the following deficiencies:

On January 12, 2026, the Court
ruled that the default was void for improper service. While a new proof of
service of the summons and complaint has been filed, default against Defendant
has not been re-entered after it was deemed void, which is required.

Plaintiff's claimed damages are
special damages, but item 2 on the request for Court judgment indicates they
are general damages.

The attorney fee request is not in
accordance with the Los Angeles Superior Court Rules,
Rule 3.214 fee schedule. Counsel has not
explained why a higher amount is justified. This is a routine wage and hour
case and Defendant defaulted shortly after it commenced. A greater award of
attorney's fees is not justified.

Plaintiff
seeks damages for periods exceeding the statute of limitations. In *Aubry v.*
Goldhor (1988) 201 Cal. App. 3d 399, 404 the court ruled that claims based
on unpaid overtime and unpaid prevailing wage rates (minimum wage), which are
statutory wages claims under the Labor Code, are governed by the 3-year

limitations period in Code Civ. Proc., section 338(a).

IT IS SO ORDERED.

Dated: July 28, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.